

Vinay Kumar Singh v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 29 May 2023 · 2023:AHC:119031-DB · WRIT - C No. 8882 of 2023 · **Writ dismissed as not pressed after the parties agreed the dispute was resolved**

HEADNOTE

Vinay Kumar Singh sought a mandamus for a permanent electricity connection to House No. 42/1A, Shivpur, Transport Nagar, Prayagraj. On 26 April 2023 the Division Bench asked the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Bamrauli, to examine the matter and do the needful in accordance with law. It did not decide the connection, any dues of the erstwhile owner, a theft assessment under the Electricity Act, 2003, or installments under Section 6.14 of the U.P. Electricity Supply Code, 2005. On 29 May 2023 counsel agreed that the dispute had been resolved and that the cause no longer survived. The writ was dismissed as not pressed.

FACTUAL SUMMARY

Vinay Kumar Singh, a practising advocate, sought a mandamus for a permanent electricity connection to House No. 42/1A, Shivpur, Transport Nagar, Prayagraj. He bought the property in 2013, began construction in 2018, and on 1 April 2018 applied to the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Bamrauli (respondent no. 3), depositing Rs. 7,625 and Rs. 100 for the connection and a meter. He moved in during 2022 and installed a solar panel. He said no bill had been raised on the erstwhile owner since the purchase, so any dues were unknown to him; that no theft assessment under the Electricity Act, 2003 had been made; and that he would pay outstanding dues in installments under Section 6.14 of the U.P. Electricity Supply Code, 2005.

On 26 April 2023 the Division Bench asked the Executive Engineer to examine the matter and do the needful in accordance with law. After pass-overs, counsel on 29 May 2023 agreed that the dispute had been resolved and that the cause no longer survived. The writ was dismissed as not pressed.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Permanent-connection writ dismissed as not pressed once the parties agree the dispute is resolved

QUESTION

Does a writ for a permanent electricity connection survive once counsel agree that the dispute has been resolved and that the cause of filing no longer survives?

HOLDING

No. Where learned counsel for the parties agree that the dispute has already been resolved and that the cause for filing the writ no longer survives, the writ is dismissed as not pressed. The Court did not decide the claim to a permanent connection, liability for the erstwhile owner's dues, any theft assessment under the Electricity Act, 2003, or installments under Section 6.14 of the U.P. Electricity Supply Code, 2005. The request on 26 April 2023 that the Executive Engineer examine the matter and do the needful in accordance with law was not a grant or refusal of the connection, and it was overtaken by the dismissal. ¶ 3-4

QUALIFIER

Operative order of 29 May 2023. No merits finding on the connection or on any demand.

FLAG Thin not-pressed record. The PDF concatenates four orders: 28.3.2023 (Court No. 42; Suneet Kumar and Rajendra Kumar-IV, JJ.; three weeks for a counter-affidavit and one week for a rejoinder; list 26.4.2023 as fresh; not to be treated as tied up or part-heard to that Bench); 26.4.2023 (Court No. 40; Mahesh Chandra Tripathi and Manjive Shukla, JJ.; unnumbered; Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Bamrauli, Prayagraj, may examine the matter and do the needful in accordance with law; passed over to 15.5.2023); 15.5.2023 (same Bench; joint pass-over to 29.5.2023); and 29.5.2023 (Neutral Citation No. 2023:AHC:119031-DB, paras 1-4; dismissed as not pressed). Pins 3-4 are to the 29.5.2023 order. Section 6.14 and the Electricity Act, 2003 (no section named) appear only in counsel's submissions on 26.4.2023. No precedent is cited. The fingerprint has no doc-id. Respondent nos. 3 and 4's

PRINCIPLE TAGS

procedural-listing-no-construction The writ for a permanent connection at House No. 42/1A, Shivpur, Transport Nagar, Prayagraj was dismissed as not pressed once counsel agreed that the dispute had been resolved and the cause no longer survived. The 26 April 2023 request that the Executive Engineer examine the matter in accordance with law, and counsel's points on erstwhile-owner dues, a theft assessment under the Electricity Act, 2003, and installments under Section 6.14 of the U.P. Electricity Supply Code, 2005, were not decided. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A PERMANENT ELECTRICITY CONNECTION AT HOUSE NO. 42/1A, SHIVPUR, TRANSPORT NAGAR, PRAYAGRAJ, ON THE APPLICATION AND DEPOSIT OF 1 APRIL 2018

The prayer in the writ. On 26 April 2023 the Court only asked the Executive Engineer to examine the matter and do the needful in accordance with law. The 29 May 2023 order dismissed the writ as not pressed. ¶ 3-4

NOT DECIDED — LIABILITY FOR DUES OF THE ERSTWHILE OWNER, AND WHETHER THE ABSENCE OF ANY BILL SINCE THE 2013 PURCHASE, OR WANT OF KNOWLEDGE, WAS A DEFENCE

Counsel's submission on 26 April 2023. He also said that if electricity dues remained, the onus would lie on the petitioner. The Court did not decide either way. ¶ 26.4.2023

NOT DECIDED — WHETHER AN ALLEGATION OF THEFT HAD TO BE TAKEN THROUGH THE MECHANISM OF THE ELECTRICITY ACT, 2003, AND A FINAL ASSESSMENT, BEFORE THE CONNECTION COULD BE WITHHELD

Counsel's submission. No section of the Act was cited. No assessment was produced or set aside. ¶ 26.4.2023

NOT DECIDED — INSTALLMENTS UNDER SECTION 6.14 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Counsel offered to deposit outstanding dues in installments under that provision if time were given. The Court made no order under clause 6.14. ¶ 26.4.2023

NOT DECIDED — THE TERMS ON WHICH THE DISPUTE WAS RESOLVED AFTER 26 APRIL 2023

The 29 May 2023 order records only the parties' agreement that the dispute had been resolved and that the cause no longer survived. ¶ 3-4